

Comment from Comment on FR Doc # 2023-07776

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Comment

We are staff attorneys at the Policing Project at New York University School of Law. Among other things, our work includes academic research into how AI-enabled policing technologies can be made more transparent, equitable, and accountable.

We wanted to share with your office a report we authored last year exploring, in detail, the idea of a certification scheme governing AI-enabled policing technologies.

Our report explains how certification might overcome some of the obstacles facing traditional regulation of AI-enabled technologies and discusses the practical design considerations that a certification system would have to navigate. It also surveys the challenges posed in the implementing of a certification regime, including how to ensure the body is legitimate and obtains adequate stakeholder buy-in.

We hope that our report proves useful to NTIA as it considers certification and other soft-law mechanisms to govern AI-enabled technologies. If it would be helpful, we would